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Case Number: 25SMCV04007 Hearing Date: July 30, 2026 Dept: P

Tentative Ruling

Stephen Craig Dimon v. Losy, LLC,
et al., Case No. 25SMCV04007

Uber, LLC’s Motion to Compel
Arbitration

Hearing Date: July 30, 2026

Background

Plaintiff Stephen Craig Dimon sues Defendants Losy LLC, Yahui Shi, and Uber Technologies, LLC (“Uber”) for motor vehicle negligence and general negligence arising from a car accident on August 29, 2024 on or near Norton Avenue and Havenhurst Dr., West Hollywood, CA. (Complaint, p. 5.)

On August 1, 2025, Dimon filed the complaint.

On November 25, 2025, Losy LLC answered.

On January 28, 2026, Uber answered.

On February 5, 2026, Yahui Shi answered.

On June 30, 2026, Uber filed this motion to compel arbitration. On July 16, 2026, Dimon filed an opposition. On July 23, 2026, Uber filed its reply.

Arguments

Uber argues that Dimon agreed to arbitrate this dispute when he checked a box indicating that he “reviewed and agreed to the Terms of Use and acknowledge[d] the Privacy Notice,” on an in-app pop-up window that hyperlinked the “Terms of Use” and “Privacy Notice.” (Motion to Compel Arbitration, pp. 11-12.) Uber argues that Dimon was presented with conspicuous notice of Uber’s terms every time they were updated after he initially signed up for the app and agreed by clicking accept or checking a box each time. (Id. at p. 12.) Uber argues that these claims should be sent to arbitration because they are personal injury claims that Dimon alleges arise out of the use of the Uber app and therefore fall under the Terms of Use’s arbitration clause. (Id. at p. 13.) Uber argues that all threshold issues under the agreement must be decided by the arbitrator, and that even if the Court decides to determine arbitrability, this matter should be sent to arbitration. (Id. at pp. 14-15.)

In opposition, Dimon argues that Uber’s arbitration agreement is not enforceable because it was inconspicuous and placed within a general consent document. (Opposition, p. 4.) Dimon also argues that the agreement is unconscionable because it is an adhesion contract. (Id. at p. 5.) Next, Dimon argues that it would be unfair to compel all the parties in this case to arbitration, and that Uber waived its right to compel arbitration by waiting eight months to bring this motion. (Id. at 7-8.)

In reply, Uber argues that most of the issues Dimon raises are precluded by the delegation clause in the arbitration agreement, which Dimon does not challenge. (Reply, p. 3.) Uber argues that it did not waive arbitration, nor will this result in inconsistent verdicts. (Id. at p. 6.)

Motion to Compel Arbitration

“On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate a controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists . . . .” (Code Civ. Proc., § 1281.2) “The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability.” (Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55 Cal.4th 223, 236.)

Discussion

Enforceable Arbitration Agreement

“[O]ne¿who accepts or signs an instrument, which on its face is a contract, is deemed to assent to all its terms, and cannot escape liability on the ground that he [or she] has not read it.”¿ (Ramos v. Westlake Services LLC¿(2015) 242 Cal.App.4th 674, 686, internal quotes omitted.)¿ By checking or clicking a box¿indicating¿agreement near a link to the contract’s terms (a so-called “clickwrap” agreement), the consumer¿generally manifests¿consent to agree to those terms.¿¿(See, e.g.,¿Lee v. Ticketmaster L.L.C.¿(9th Cir. 2020) 817¿Fed.Appx. 393, 394 [a “clickwrap agreement” requires “users to click a separate box indicating that they agree to its Terms”];¿In re Holl¿(9th Cir. 2019) 925 F.3d 1076, 1084 [“there is no question Holl affirmatively assented to the UPS My Choice Service Terms.¿ He checked a box acknowledging as much.”].)¿

In opposition, Dimon cites two cases finding that a clickwrap arbitration agreement was not enforceable. In Doe v. Massage Envy Franchising, Inc., the Court found that the arbitration agreement was unenforceable because it did not function normally as a clickwrap agreement—plaintiff had an in-person appointment and agreed to the terms of service by clicking a checkbox on a tablet at the business with no indication that she could or should click through to the terms of service agreement. (Doe v. Massage Envy Franchising, Inc. (2022) 87 Cal.App.5th 23, 33-34.) In Long v. Provide Commerce, the hyperlinks were buried in the online checkout process. (Long v. Provide Commerce, Inc. (2016) 245 Cal.App.4th 855, 865.) The Court observed that “our review of screenshots reveals how difficult it is to find the Terms of Use hyperlinks in the checkout flow even when one is looking for them.” (Id. at 866.)

Here, only Uber describes what the agreement process on the Uber app is like. Their description indicates that the arbitration agreement was in a prominently hyperlinked document in a pop-up users could not ignore. Dimon does not contest this description, nor does he contest that he agreed to the terms.

Here, the Court finds that Uber has presented sufficient evidence of an enforceable “clickwrap” arbitration agreement in the app, the terms of which Dimon assented to by checking the “agree” box. Moreover, the language of the arbitration agreement is broad enough to cover the dispute at hand. Accordingly, the burden shifts to Dimon to establish any facts necessary to show that the arbitration agreement should not be enforced.

Unconscionability

The party opposing arbitration has the burden of proving that the arbitration provision was unconscionable. (Szetela v. Discover Bank (2002) 97 Cal.App.4th 1094, 1099.) Unconscionability requires a showing of both procedural unconscionability and substantive unconscionability. (Armendariz v. Foundation Health Psychare Services, Inc. (2000) 24 Cal.4th 84, 114, 99 Cal.Rptr.2d 745, 6 P.3d 669; 24 Hour Fitness, supra, 66 Cal.App.4th at pp. 1212–1213, 78 Cal.Rptr.2d 533; Stirlen v. Supercuts, Inc. (1997) 51 Cal.App.4th 1519, 1530–1531, 60 Cal.Rptr.2d 138.) Both components must be present, but not in the same degree; by the use of a sliding scale, a greater showing of procedural or substantive unconscionability will require less of a showing of the other to invalidate the claim. (Armendariz, supra, at p. 114, 99 Cal.Rptr.2d 745, 6 P.3d 669.)

a.
Procedural unconscionability

“The procedural element of the unconscionability analysis concerns the manner in which the contract was negotiated and the circumstances of the parties at that time. [Citation.] The element focuses on oppression or surprise. [Citation.] ‘Oppression arises from an inequality of bargaining power that results in no real negotiation and an absence of meaningful choice.’ [Citation.] Surprise is defined as ‘“the extent to which the supposedly agreed-upon terms of the bargain are hidden in the prolix printed form drafted by the party seeking to enforce the disputed terms.”’ [Citation.]” (Gatton v. T-Mobile USA, Inc. (2007) 152 Cal.App.4th 571, 581.) The analysis “focuses on the unequal bargaining positions and hidden terms common in the context of adhesion contracts.”¿ (24 Hour Fitness, Inc. v. Superior Court (1998) 66 Cal.App.4th 1199, 1212-1213.)¿

Since it appears that the arbitration agreement offered to plaintiff was mandatory, the Court agrees there is some level of procedural unconscionability here. (Mills v. Facility Solutions Group, Inc. (2022) 84 Cal.App.5th 1035, 1051 [“It is undisputed the arbitration agreement is an adhesive contract because it was imposed as a condition of employment”]; Ajamian v. CantorCO2e, L.P. (2012) 203 Cal.App.4th 771, 796 [“The finding that the arbitration provision was part of a nonnegotiated employment agreement establishes, by itself, some degree of procedural unconscionability”].) But the level of unconscionability is minimal. “‘[A]bsent unusual circumstances, use of a contract of adhesion establishes a minimal degree of procedural unconscionability notwithstanding the availability of market alternatives.’” (Walnut Producers of California (2010) 187 Cal.App.4th 634, 646, original italics.) Plaintiff offers no other reason as to why an adhesion contract alone establishes more than minimal procedural unconscionability.

Substantive unconscionability arises when a contract imposes unduly harsh, oppressive, or one-sided terms. (Armendariz v. Foundation Health Psychcare Services, Inc. (2000) 24 Cal.4th 83, 113 [provision in adhesion contract will not be enforced if it “‘does not fall within the reasonable expectations of the weaker or “adhering” party’” or if, in context, it is unduly oppressive or unconscionable].)

Dimon makes no argument that the arbitration agreement is substantively unconscionable. Absent any substantive unconscionability, the agreement cannot be unconscionable.

b.
Waiver

Dimon’s waiver argument is unpersuasive. The arbitration provision does not require that Uber invoke it at the beginning of litigation, and Uber raised the arbitration clause in meet and confer efforts significantly before filing this motion.

Dimon also argues that granting this motion would create a risk of inconsistent verdicts because there are multiple defendants, many of whom cannot be compelled to arbitration. However, no other party opposes Uber’s motion and this risk alone is not sufficient reason to refuse to enforce an otherwise valid arbitration agreement.

Conclusion

Uber’s Motion to Compel Arbitration is GRANTED.